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CASE #	CASE NAME	HEARING NAME
CVPS2503366	BERGQUIST VS CITY OF DESERT HOT SPRINGS	MOTION TO COMPEL BY CHRISTIANSEN AMUSEMENTS, INC.

Tentative Ruling: No tentative ruling, hearing is continued to 7.31.26 to be heard with other two discovery motions.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2507919	KAMRAN VS MARRIOTT INTERNATIONAL, INC.	MOTION FOR TRIAL PREFERENCE BY MEHRNOOSH KAMRAN

Tentative Ruling: CCP § 36(a) provides that a party who is over 70 years of age may petition the court for preference, “which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” (CCP § 36(a)(1)-(2).) The purpose of trial preference under Section 36 is “to safeguard litigants beyond a specified age against the legislatively acknowledged risk that death or incapacity might deprive them of the opportunity to have their case effectively tried and the opportunity to recover their just measure of damages or appropriate redress.” (*Kline v. Superior Court* (1991) 227 Cal.App.3d 512, 515.) Upon granting such a motion, the court shall set the matter for trial not more than 120 days from that date. (CCP § 36(f).)

Where a party meets the requisite standard for calendar preference based on the party’s health and status as more than 70 years of age, preference must be granted; the court cannot balance conflicting interests. (*Fox v. Sup. Ct.* (2018) 21 Cal.App.5th 529.) Trial must be set within 120 days even if opposing parties have not completed discovery or pretrial preparations. (*Swaithe v. Sup. Ct. (Hunter)* (1989) 212 Cal.App.3d 1082, 1086.) However, the court still must find that Plaintiff has a substantial interest in the action and his health is such “that a preference is necessary to prevent prejudicing the party’s interest in the litigation.” (CCP § 36(a)(1)-(2).) Notably, the requisite showing under § 36(a) may be made through an attorney affidavit “based upon information and belief as to the medical diagnosis and prognosis.” (CCP § 36.5; see also *Fox v. Sup. Ct., supra*. 21 Cal.App.5th at 534 [no doctor’s declaration is required under the standard of subdivision (a)].)

Here, Plaintiff’s counsel, Matthew Novian, submitted a declaration stating Plaintiff is 73-years-old (Dec. Novian ¶ 4), which is undisputed. Mr. Novian asserts that Plaintiff has a substantial interest in the outcome of this action, which is also undisputed. (*Id.* ¶ 5.) He summarizes Plaintiff’s fall and her resulting medical treatment. (*Id.* ¶¶ 6-13.) By 12/22/25, Plaintiff’s orthopedic surgeon noted her right knee was “severely arthritic”, painful, and deteriorating. (*Id.* ¶ 14.) Plaintiff had a total knee replacement surgery on 2/17/26. (*Id.* ¶ 15.) Her right shoulder has also deteriorated from a partial to a complete rotator cuff tear requiring physical therapy. (*Id.* ¶ 16.) Mr. Novian then concludes that due to her age, deteriorating health conditions, and significant injuries, there is a substantial risk that delay in bringing this matter to trial will prejudice Plaintiff’s interests. (*Id.* ¶ 17.)

To the contrary, Marriott’s counsel, Saleem Hawathmeh, declares that there is nothing in Plaintiff’s medical records that suggests she “suffers from any condition that